

the immunity that protects executive officials (other than the President)^{10/} is a judge-made doctrine that has evolved on an ad hoc basis.

This has resulted in a dichotomy that does not exist with judicial and legislative immunity. Executive officials sued in tort for breaching duties imposed by the common law generally are protected by absolute immunity. The same officials sued for violating duties created by the Constitution, however, generally only are protected by a qualified immunity. To complicate the matter further, there is a significant exception to the latter rule whereby certain functions still are accorded absolute immunity. Finally, no general rule governs the immunity that protects executive officials sued on statutory theories.

The present state of the executive immunity doctrine has practical consequences for the attorney handling a personal liability case. Because the nature of the lawsuit determines the scope of protection a defendant official receives and the immunity analysis the court must undertake, immunity briefs should avoid generally characterizing all damages actions as "Bivens" suits.^{11/} Instead, briefs

^{10/} A fundamentally different immunity doctrine protects the President, and accordingly Presidential immunity is treated separately in Part II(D), infra.

^{11/} Bivens v. Six Unknown Named Agents of Fed. Bur. of Narcotics, 403 U.S. 388 (1971).